

**IN THE HIGH COURT OF DELHI AT NEW DELHI (EXTRAORDINARY CIVIL
WRIT JURISDICTION)**

W.P.(C) No. 2287 of 2026

IN THE MATTER OF: Ms. Priya Nair ... Petitioner Versus Internal Complaints
Committee, Orbis Technologies Pvt. Ltd. & Ors. ... Respondents

NOTE OF ARGUMENTS ON BEHALF OF THE PETITIONER

1. The Petitioner challenges the report of the Internal Complaints Committee dated 14.01.2026, which closed her complaint of sexual harassment without examining her witnesses.

2. The right to a workplace free of sexual harassment flows from Articles 14, 15, 19(1)(g) and 21 of the Constitution. This was first recognised in *Vishaka & Ors. v. State of Rajasthan & Ors.*, (1997) 6 SCC 241 : AIR 1997 SC 3011, where the Supreme Court held:

“Gender equality includes protection from sexual harassment and right to work with dignity, which is a universally recognised basic human right.”

3. The Court in *Vishaka* (supra) also noted that “The fundamental right to carry on any occupation ... depends on the availability of a ‘safe’ working environment.”

4. An inquiry that does not hear the complainant's witnesses is not a fair procedure. Procedure that affects a person's rights must be fair, just and reasonable: *Maneka Gandhi v. Union of India*, AIR 1978 SC 597.

5. The duty of the State and its agencies to protect dignity is also reflected in *D.K. Basu v. State of W.B.*, (1997) 2 SCC 416.

6. The Committee also failed to consider that an online campaign was run against the Petitioner after she complained. Speech that targets a person in this way is not protected expression: *Kavita Arora v. Union of India*, (2015) 5 SCC 1.

7. The procedure for registration of complaints is mandatory and leaves no room for discretion, as held in (2014) 2 SCC 1.

8. The impugned report is liable to be set aside and the complaint remanded for a fresh inquiry.

PLACE: New Delhi DATE: 12.03.2026

COUNSEL FOR THE PETITIONER